

OPERATING AGREEMENT

Fresh Roots Consulting, LLC

(A Michigan Limited Liability Company)

This Operating Agreement is made and entered into as of February 5th, 2026 (the “Effective Date”) by the sole Member identified below.

RECITALS

A. Fresh Roots Consulting, LLC (the “Company”) is or will be a limited liability company formed under the Michigan Limited Liability Company Act, MCL 450.4101 et seq. (the “Act”), by the filing of Articles of Organization with the Michigan Department of Licensing and Regulatory Affairs.

B. The Member desires to adopt this Operating Agreement to set forth the governance and operation of the Company.

ARTICLE 1 — DEFINITIONS

1.1 “Act” means the Michigan Limited Liability Company Act, as amended from time to time.

1.2 “Articles” means the Articles of Organization of the Company as filed with the State of Michigan, as amended or restated from time to time.

1.3 “Company” means Fresh Roots Consulting, LLC, a Michigan limited liability company.

1.4 “Member” means the sole member of the Company as set forth in Section 3.1.

1.5 “Membership Interest” means the Member’s entire interest in the Company, including rights to profits, losses, distributions, and governance.

ARTICLE 2 — ORGANIZATION

2.1 Name. The name of the Company is **Fresh Roots Consulting, LLC**.

2.2 Purpose. The Company may engage in any lawful business activity, including but not limited to business process and technology efficiency consulting, data and analytics consulting, and related professional services (the “Business”).

2.3 Principal Office. The principal office of the Company shall be located at such place as the Member may designate from time to time. The initial principal office is:

1100 S Second Ave
Alpena, MI 49707

2.4 Registered Agent. The Company’s registered agent in the State of Michigan shall be as designated in the Articles and may be changed by the Member from time to time in accordance with the Act.

2.5 Term. The Company shall have perpetual existence unless dissolved in accordance with this Agreement or the Act.

2.6 Federal Employer Identification Number (EIN). The Company's federal Employer Identification Number is **41-4106328**.

ARTICLE 3 — MEMBER

3.1 Sole Member. The Company has one (1) member:

Name: James Mitterling

Address: 1100 S Second Ave

Alpena, MI 49707

Percentage Interest: 100%

3.2 No Additional Members. Unless this Agreement is amended to add members, the Company shall have only one Member. Admission of additional members would require a written amendment to this Agreement signed by the Member.

3.3 No Capital Certificate. The Company is not required to issue certificates representing the Membership Interest unless the Member elects to do so.

ARTICLE 4 — MANAGEMENT

4.1 Member-Managed. The Company is managed by the Member (member-managed). The Member has full and exclusive authority to manage, control, and make decisions for the Company, consistent with this Agreement and the Act.

4.2 Authority of Member. The Member may:

- Bind the Company and enter into contracts, agreements, and commitments on behalf of the Company;
- Open, maintain, and close bank accounts and other accounts in the name of the Company;
- Hire, supervise, and terminate employees, contractors, and agents;
- Incur obligations and liabilities on behalf of the Company;
- Acquire, hold, and dispose of real and personal property;
- Execute and deliver instruments and documents; and
- Take any other action necessary or appropriate to carry on the Business.

4.3 No Manager. The Company does not have a separate manager. All management authority rests with the Member.

4.4 Compensation. The Member may receive reasonable compensation for services rendered to the Company, as determined by the Member. The Member may also receive distributions in accordance with this Agreement.

ARTICLE 5 — CAPITAL CONTRIBUTIONS AND ALLOCATIONS

5.1 Initial Contribution. The Member has made or will make an initial capital contribution to the Company in an amount and form (cash, property, or services) as determined by the Member. The Member is not obligated to make any additional capital

contributions unless agreed in writing.

5.2 Profits and Losses. All net profits and net losses of the Company shall be allocated 100% to the Member.

5.3 Tax Treatment. For federal and state income tax purposes, the Company shall be disregarded as an entity separate from the Member (single-member LLC treatment) unless the Member elects otherwise (e.g., to be taxed as a corporation). The Member shall report all income, deductions, credits, and other items of the Company on the Member's personal tax returns as required by applicable law.

ARTICLE 6 — DISTRIBUTIONS

6.1 Distributions. The Member may cause the Company to make distributions of available cash or other property to the Member at such times and in such amounts as the Member determines, subject to the Company's obligations to creditors and the requirements of the Act (e.g., the Company may not make distributions if it would render the Company unable to pay its debts as they become due in the usual course of business).

6.2 Form. Distributions may be made in cash or in kind, as determined by the Member.

ARTICLE 7 — BOOKS, RECORDS, AND ACCOUNTING

7.1 Books and Records. The Company shall maintain complete and accurate books and records at its principal office, including:

- A current list of the name and address of the Member;
- Copies of the Articles and all amendments;
- Copies of this Agreement and all amendments;
- Financial statements and tax returns for the past three (3) years;
- Records of all proceedings and actions of the Member.

7.2 Fiscal Year. The Company's fiscal year shall be the calendar year (January 1 – December 31), unless the Member selects a different fiscal year for tax or accounting purposes.

7.3 Accounting. The Company shall use a method of accounting (cash or accrual) as chosen by the Member and consistent with applicable tax requirements.

7.4 Bank Accounts. Company funds shall be held in accounts in the name of the Company. The Member shall not commingle Company funds with the Member's personal funds.

ARTICLE 8 — TRANSFER OF MEMBERSHIP INTEREST

8.1 Restriction. The Member may transfer all or part of the Membership Interest only in compliance with this Agreement and the Act. Any transfer that would result in more than one member may require an amendment to this Agreement to reflect multi-member governance.

8.2 Encumbrances. The Member may not encumber the Membership Interest (e.g., pledge as collateral) in a manner that would violate the Act or impair the Company's ability to conduct the Business, without updating this Agreement if necessary.

ARTICLE 9 — DISSOLUTION AND WINDING UP

9.1 Events of Dissolution. The Company shall dissolve upon the first to occur of:

- The written consent of the Member;
- Any event that under the Act causes dissolution of a limited liability company; or
- Entry of a decree of dissolution by a court of competent jurisdiction.

9.2 Winding Up. Upon dissolution, the Member (or a liquidating representative appointed by the Member) shall wind up the Company's affairs: liquidate assets, pay or provide for creditors, and distribute remaining assets to the Member in accordance with the Act and this Agreement.

9.3 Certificate of Dissolution. When winding up is complete, the Member shall cause the Company to file any required certificate of dissolution or similar document with the State of Michigan.

ARTICLE 10 — GENERAL PROVISIONS

10.1 Governing Law. This Agreement and the rights and obligations of the Member and the Company shall be governed by the laws of the State of Michigan, without regard to conflict of laws principles.

10.2 Amendments. This Agreement may be amended, restated, or supplemented only by a written instrument signed by the Member.

10.3 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

10.4 Entire Agreement. This Agreement, together with the Articles, constitutes the entire agreement among the Member and the Company regarding the subject matter hereof and supersedes all prior agreements and understandings.

10.5 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument. A signed copy delivered by email or other electronic means shall be effective as an original.

10.6 Liability of Member. The Member's liability for the debts and obligations of the Company shall be limited as provided under the Act. The Member shall not be personally liable for Company obligations solely by reason of being the Member.

SIGNATURE

The sole Member has executed this Operating Agreement as of the Effective Date.

MEMBER:

Name (printed)

James Mitterling

Signature



Date

2/5/2026

Fresh Roots Consulting, LLC — Operating Agreement

Single-Member, Member-Managed — Michigan LLC

Draft for review; consider having an attorney review before signing.